

23STLC00498 23STLC00498

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-08-31

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Case Number: 23STLC00498 Hearing Date: August 31, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Interinsurance Exchange
of the Automobile Club's Motion to
Enforce Settlement Agreement and Enter Judgment is granted. Judgment is
to be entered in Plaintiff's favor and against Defendant Jose Alfredo Contreras
Rosales in the amount of \$16,940.40 unpaid principal, \$3,706.00 interest calculated
at the rate of 5 percent per annum on the unpaid principal from June 16, 2021,
and costs of \$370.00.

The proposed judgment filed on
June 3, 2026 is signed and entered this date.

Analysis:

On January 23,
2023, Plaintiff Interinsurance Exchange of the Automobile Club ("Plaintiff")
filed this subrogation action against Defendants Concepcion Contreras aka
Concepcion Vasquez ("Defendant Contreras") and Jose Alfredo Contreras Rosales ("Defendant
Rosales"). Plaintiff filed a Notice of Settlement of Entire Case on March 27,
2023.

On December 2,
2025, Plaintiff filed the first Motion
to Enforce Settlement Agreement and Enter Judgment. At the hearing on February
3, 2026, the Court denied the Motion and set an Order to Show Cause Hearing Re:
Dismissal for Failure to Establish Timely Proof of Service for March 23, 2026.
(Minute Order, 02/03/26.)

On April 13, 2026, Plaintiff filed a Request for Dismissal of Defendant Contreras, which the Court entered on the same day. On June 3, 2026, Plaintiff filed the instant Motion to Enforce Settlement Agreement and Enter Judgment. At the Order to Show Cause, the Court found that Defendant Rosales had been served and that there were no other Defendants active in the case. (Minute Order, 06/08/26.) The Court stated that the hearing on the instant Motion to Enforce Settlement Agreement and Enter Judgment would remain set for August 31, 2026 and instructed counsel for Plaintiff to give notice. (Ibid.)

Discussion

The instant Motion is brought under Code of Civil Procedure, section 664.6, which states in relevant part:

If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

(Code Civ. Proc., § 664.6, subd.

(a).) “Parties” include “an attorney who represents the party” and an insurer’s agent. (Code Civ. Proc., § 664.6, subd. (b).) The settlement must include the signatures of the parties seeking to enforce the agreement, and against whom enforcement is sought. (J.B.B. Investment Partners, Ltd. v. Fair (2014) 232 Cal.App.4th 974, 985.) The settlement agreement complies with the statutory requirements set forth above because it was signed by both parties. (Motion, Tapper Decl., Exh. A, p. 5.)

The settlement provides that Defendant Rosales would pay Plaintiff \$18,470.40 in monthly payments starting on March 15, 2023. (Id. at Exh. A, ¶2.) The settlement agreement also provides that in the event of Defendant Rosales’ default, Plaintiff may seek judgment in the settlement amount, less credit for all payments made prior to

default, plus interest and court costs. (Id. at Exh. A, ¶¶1, 5.) A total of \$1,530.00 was paid towards the settlement, after which Defendant Rosales defaulted. (Id. at ¶3.) Therefore, Plaintiff is entitled to judgment in the amount of \$16,940.40 unpaid principal (\$18,470.40 - \$1,530.00) \$3,706.00 interest calculated at the rate of 5 percent per annum on the unpaid principal from June 16, 2021, and costs of \$370.00. (Id. at ¶5.)

Conclusion

Plaintiff Interinsurance Exchange of the Automobile Club's Motion to Enforce Settlement Agreement and Enter Judgment is granted. Judgment is to be entered in Plaintiff's favor and against Defendant Jose Alfredo Contreras Rosales in the amount of \$16,940.40 unpaid, \$3,706.00 interest calculated at the rate of 5 percent per annum on the unpaid principal from June 16, 2021, and costs of \$370.00.

The proposed judgment filed on June 3, 2026 is signed and entered this date.

Moving party to give notice.